

23STCV26085 23STCV26085

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C310%2C07%2F07%2F2026

Source SHA-256: 9627a3ab25981690b8bcbdfdf30fcc24be58f8f4de2e4c77148d29966c2b1023

Case Number: 23STCV26085 Hearing Date: July 7, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 7, 2026

Case Name: Gurule v. Feldman, et al.

Case No.: 23STCV26085

Matter: Motion for Terminating Sanctions, etc.

Moving Party: Plaintiff Robert Gurule

Responding Party: Unopposed

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an employment action.

Plaintiff Robert Gurule seeks terminating and monetary sanctions against Defendant Lou Rodriguez. Plaintiff contends that "Rodriguez has failed to comply with court orders requiring him to provide supplemental responses to special interrogatories and requests for production of documents."

"California discovery law authorizes a range of penalties for conduct amounting to 'misuse of the discovery process.' " (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 991.) Misuses of the discovery process include "[u]sing a discovery method in a manner that does not comply with its specified procedures" (Code Civ. Proc. § 2023.010(b)); "[f]ailing to respond or to submit to an authorized method of discovery" (id., subd. (d)); "[m]aking an evasive response to discovery" (id., subd. (f)); and "[d]isobeying a court order to provide discovery" (id., subd. (g).)

Code Civ. Proc. § 2023.030 authorizes a trial court to impose monetary sanctions, issue sanctions, evidence sanctions, or terminating sanctions against "anyone engaging in conduct that is a misuse of the discovery process." In selecting the appropriate sanction, a trial court "should consider both the conduct being sanctioned and its effect on the party seeking discovery," and should tailor the sanction to fit the harm caused by the abuse of the discovery process. (Doppes, supra, 174 Cal.App.4th at p. 992.) "The trial court cannot impose sanctions for misuse of the discovery process as a punishment." (Ibid.)

A terminating sanction "is a proper sanction to punish the failure to comply with a rule or an order only if the court's authority cannot be vindicated through the imposition of a less severe alternative." (Rail Services of America v. State Comp. Ins. Fund (2003) 110 Cal.App.4th 323, 331 [concerning dismissal for a plaintiffs' refusal to comply with discovery]; see also Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-80 ["[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction."].)

As the Motion is unopposed, it appears Rodriguez does not wish to participate in the discovery process. Therefore, the Court enters a terminating sanction against Rodriguez. His answer is stricken and his default is entered. No further sanctions.

Moving party to give notice.